Terms and Conditions for Use of the I-Sec Insurance Agency Website

Effective Date: 1st November 2026

These Terms and Conditions ("Terms") govern access to and use of the I-Sec Insurance Agency Website, including all web pages, online portals, forms, and related digital services operated by I-Sec Insurance Agency ("I-Sec", "the Agency", "we", "our", or "us").

By accessing, registering on, or using the Website, you ("User", "Customer", "you", or "your") acknowledge that you have read, understood, and agreed to be bound by these Terms.

1. Definitions

For purposes of these Terms:

- **"Agency"** or **"I-Sec"** means I-Sec Insurance Agency, an insurance intermediary licensed by the Insurance Regulatory Authority of Kenya to transact insurance agency business on behalf of Insurers.
- **"Insurer"** means a person or company licensed under the Insurance Act (Cap. 487) of Kenya to carry on insurance business, including reinsurers.
- **"IRA"** means the Insurance Regulatory Authority of Kenya.
- **"Personal Data"** shall have the meaning assigned under the Data Protection Act, 2019.
- **"Website"** means the I-Sec Insurance Agency website, online portals, forms, and related systems through which I-Sec offers insurance services.
- **"Policy"** means an insurance contract issued by an Insurer.
- **"Premium"** means the amount payable for insurance coverage.
- **"User"** means any person accessing, browsing, registering on, or using the Website.

2. Acceptance of Terms

By accessing or using the Website, you represent and warrant that:

- You are at least eighteen (18) years old or otherwise legally competent to enter into binding agreements;
- You have the legal authority to act on behalf of any organization or person for whom you are applying for insurance;
- Information submitted by you is accurate, complete, and current;
- You will comply with all applicable laws, regulations, and Insurer requirements.

If you do not agree to these Terms, you must discontinue use of the Website immediately.

3. Nature of Services

Through the Website, I-Sec provides access to insurance-related services including:

- Insurance quotations;
- Insurance applications;
- Policy placement and issuance through Insurers;
- Premium payments;
- Policy renewals;
- Claims notifications and claims support;
- Upload of supporting documents;
- Customer communications;
- Retrieval of insurance certificates and policy documents;
- Insurance portfolio management and advisory support.

I-Sec acts as an insurance agent, arranging insurance cover with Insurers on behalf of Users and facilitating interactions between Users, Insurers, payment providers, and other authorized service providers.

I-Sec does not underwrite insurance risks or assume Insurer obligations. Policies are issued by the respective Insurer, and all insurance contracts remain subject to that Insurer's terms and conditions.

4. Account Registration and Security

4.1 Registration

Certain Website features may require account registration. You agree to provide accurate and complete information during registration and to keep your information updated.

4.2 Account Security

You are responsible for:

- Maintaining the confidentiality of usernames, passwords, PINs, OTPs, and authentication credentials;
- Restricting unauthorized access to your account;
- All activities conducted under your account.

4.3 Unauthorized Use

You must notify us immediately if you suspect:

- Unauthorized access;
- Account compromise;
- Identity theft;
- Fraudulent activity.

I-Sec shall not be liable for losses arising from failure to safeguard account credentials.

5. Insurance Applications

5.1 Application Submission

Insurance applications submitted through the Website are subject to:

- Verification of information;
- Regulatory checks;
- Underwriting review by the Insurer;
- Approval by the Insurer.

5.2 No Guarantee of Coverage

Submission of an application does not constitute:

- Acceptance of risk;
- Issuance of a policy;
- Confirmation of insurance coverage.

Coverage becomes effective only upon Insurer approval and satisfaction of all applicable conditions.

5.3 Duty of Disclosure

Users are required to disclose all material facts relevant to the insurance risk. Failure to provide complete and accurate information may result in:

- Rejection of an application;
- Cancellation of a policy;
- Denial of claims;
- Legal action where applicable.

6. Electronic Document Submission

You consent to submitting information and supporting documents electronically through the Website. You acknowledge that:

- Uploaded documents may be shared with Insurers and used for underwriting, claims, compliance, and verification purposes;
- Documents must be authentic, complete, and accurate;
- Submission of forged, altered, or misleading documents may result in account suspension, policy cancellation, and legal action.

7. Premium Payments

7.1 Payment Channels

Premiums may be paid through approved payment channels available on the Website, including:

- Mobile money services;
- Bank transfers;
- Other approved payment methods.

7.2 Commencement of Coverage

Insurance coverage shall commence only after:

- Successful payment confirmation;
- Completion of underwriting requirements;
- Acceptance of risk by the Insurer.

7.3 Renewals

Users are solely responsible for ensuring timely renewal of policies. I-Sec may send renewal reminders; however, such reminders do not create an obligation on I-Sec or the Insurer.

7.4 Refunds

Refunds shall be governed by:

- Applicable Insurer policies;
- Regulatory requirements;
- Applicable laws of Kenya.

8. Digital Policy Documents and Communications

You consent to receiving electronic communications from I-Sec, including:

- Policy schedules;
- Insurance certificates;
- Renewal notices;
- Premium receipts;
- Claims correspondence;
- Regulatory notices;
- SMS, email, and other electronic notifications.

Electronic documents shall be deemed legally valid and enforceable to the extent permitted by law.

9. User Obligations

Users shall not:

- Use the Website for unlawful activities;
- Provide false or misleading information;
- Impersonate another person;
- Circumvent security controls;
- Upload malicious software or harmful content;
- Interfere with Website operations;
- Reverse engineer or attempt unauthorized access to Website systems.

Violation of these obligations may result in suspension, termination, or legal action.

10. Intellectual Property Rights

All intellectual property rights relating to the Website, including:

- Software;
- Source code;
- Databases;
- Trademarks;
- Logos;
- Content;
- User interfaces;
- Designs;
- Documentation,

remain the exclusive property of I-Sec and/or its licensors.

Users are granted a limited, non-transferable, non-exclusive license to use the Website solely for lawful personal or business purposes. No content may be copied, modified, distributed, sold, or reproduced without I-Sec's prior written consent.

11. Privacy and Data Protection

Collection and processing of personal information is governed by the I-Sec Insurance Agency Privacy Policy.

By using the Website, you consent to the processing of your Personal Data, including sharing it with Insurers for the purpose of arranging and servicing your insurance, in accordance with:

- The Data Protection Act, 2019;
- The Data Protection Regulations;
- Applicable insurance regulations;
- The I-Sec Insurance Agency Privacy Policy.

12. Third-Party Services

The Website may integrate with or link to third-party services including:

- Insurance companies;
- Payment gateways;
- Government verification services;
- Identity verification providers;
- Messaging platforms;
- Cloud service providers.

I-Sec does not guarantee uninterrupted operation of third-party services and shall not be liable for failures attributable to such providers.

13. Disclaimers

The Website is provided on an "as is" and "as available" basis. I-Sec does not warrant that:

- The Website will always be available;
- Services will be uninterrupted;
- Information will always be error-free;
- Quotations will remain unchanged following underwriting review.

Insurance quotations displayed on the Website are indicative and subject to Insurer verification and underwriting decisions.

14. Limitation of Liability

To the fullest extent permitted by law, I-Sec, its directors, employees, agents, affiliates, and partners shall not be liable for:

- Indirect losses;
- Consequential damages;
- Loss of profits;
- Loss of business opportunities;
- Loss of data;
- Service interruptions;
- Delays caused by third-party providers;
- Decisions made by Insurers regarding underwriting or claims.

Nothing in these Terms excludes liability that cannot lawfully be excluded under Kenyan law, including I-Sec's obligations as a licensed insurance intermediary.

15. Indemnity

You agree to indemnify and hold harmless I-Sec, Insurers, and their directors, officers, employees, and service providers from any claims, losses, damages, liabilities, costs, and expenses arising from:

- Breach of these Terms;
- Misrepresentation;
- Fraudulent activity;
- Violation of applicable laws;
- Unauthorized use of the Website.

16. Suspension and Termination

I-Sec may suspend or terminate access to the Website at any time for:

- System maintenance;
- Security incidents;
- Regulatory requirements;
- Fraud prevention;
- Breach of these Terms;
- Non-compliance with applicable laws.

Termination shall not affect accrued rights, obligations, or liabilities, including any Policy already in force with an Insurer.

17. Force Majeure

I-Sec shall not be liable for delays or failure to perform obligations due to events beyond its reasonable control, including:

- Natural disasters;
- Acts of government;
- Internet outages;
- Power failures;
- Cybersecurity incidents;
- Labor disputes;
- Pandemics.

18. Governing Law and Dispute Resolution

These Terms shall be governed by and construed in accordance with the laws of Kenya.

Any dispute arising from or relating to these Terms shall first be resolved through good-faith negotiations. Where resolution cannot be achieved amicably, the dispute shall be submitted to the courts of competent jurisdiction in Kenya. Users may also lodge complaints with the Insurance Regulatory Authority.

19. Regulatory Compliance

I-Sec and the Website are intended to operate in compliance with:

- The Insurance Act (Cap. 487);
- The Data Protection Act, 2019;
- Insurance Regulatory Authority (IRA) Guidelines;
- Consumer protection laws;
- Electronic Transactions laws;
- Applicable regulations governing insurance and financial services in Kenya.

20. Amendments

I-Sec reserves the right to modify these Terms at any time. Updated Terms shall become effective immediately upon publication on the Website unless otherwise specified. Continued use of the Website following publication constitutes acceptance of the revised Terms.

21. Contact Information

For inquiries regarding these Terms, please contact:

I-Sec Insurance Agency

Email: isecinsuranceagency@gmail.com OR Info@isecinsuranceagency.com

Website: www.isecinsuranceagency.com

By registering on, accessing, or using the I-Sec Insurance Agency Website, you acknowledge that you have read, understood, and agreed to be bound by these Terms and Conditions.